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Town Development Act, 2045 (1988)

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Amending Acts

1. Town Development (First Amendment) Act, 2047 (1990) 2047.10.27
2. Judicial Administration Act, 2048 (1991) 2048.2.16
3. Town Development (Second Amendment) Act, 2049 (1992) 2049.7.13
4. Town Development (Third Amendment) Act, 2054 (1997) 2054.9.16

Certification and Publication Date

5. Act Amending Some Nepal Acts, 2064 (2007) 2064.5.9
6. Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 (2009) 2066.10.7
7. Act Amending Some Nepal Acts, 2072 (2015) 2072.11.13
8. Act Amending Some Nepal Acts, 2075 (2018) 2075.11.19

Act No. 22 of the year 2045 (1988)

An Act Made to Provide for Town Development

Preamble: Whereas, in the context of increasing population and urbanization, it is desirable to make necessary provisions regarding the reconstruction, expansion, and development of existing towns as well as the construction of new towns, to provide necessary services and facilities to the inhabitants, and to maintain the health, convenience, and economic interests of the general public;

Now, therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act with the advice and consent of the National Panchayat. 1. Short Title and Commencement: (1) This Act may be called the "Town Development Act, 2045 (1988)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(2.1.1) "Town Plan" means a town plan approved by the Ministry pursuant to Section 3.

(2.1.2) "Committee" means the Town Development Committee pursuant to Section 4. Added by the Third Amendment.(2.1.a) Amended by the Act Amending Some Nepal Acts, 2072 (2015). "Local Level" means a Rural Municipality or Municipality constituted according to the prevailing law, Amended by the Act Amending Some Nepal Acts, 2072 (2015). and the term shall also include a Metropolitan City and Sub-Metropolitan City. Added by the Third Amendment.(2.1.b) "Local Plan" means a plan prepared by the Amended by the Act Amending Some Nepal Acts, 2072 (2015). Local Level by determining programs related to physical

development within its area. Added by the Third Amendment.(2.1.c) "Organization" means an organization established according to the prevailing law with the objective of conducting physical development related programs such as settlement, habitat development, market development, etc. Added by the Act Amending Some Nepal Acts, 2072 (2015).(2.1.d) "Ministry" means the Ministry of Urban Development of the Government of Nepal.

(2.1.3) "Land" means any land and the houses, structures, ponds, tanks, trees, etc. permanently situated thereon, and also includes things permanently attached to such houses, structures, ponds, tanks, trees, etc.

(2.1.4) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act.
3.

Formulation and Approval of Town Plan: (3.1) The Committee may formulate a Town Plan to fulfill any or all of the following purposes:- (3.1.1) To physically develop a town in an integrated manner in any part of Nepal, Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 (2009). (3.1.2) To reconstruct, expand, and develop existing towns and to construct new towns, Amended by the Third Amendment.(3.1.3) To determine land use zones for town development, to prescribe standards for physical development permissible in such zones, and to provide services and facilities including roads, transportation, electricity, drainage, sanitation, open spaces, etc., based on the population density of such zones, (3.1.4) To carry out other tasks related to the above works. (3.2) The Town Plan prepared by the Committee pursuant to Sub-section (3.1) shall be approved by the Government of Nepal. Amended by the Second Amendment.(3.3) A notice containing detailed particulars of the Town Plan approved by the Government of Nepal shall be published in the Nepal Gazette for the information of the general public. Deleted by the Third Amendment. Added by the Third Amendment.3a. Formulation and Approval of Local Plan: (3a.1) In areas where a Town Plan has not yet been approved, the Amended by the Act Amending Some Nepal Acts, 2072 (2015). Local Level may formulate a Local Plan by involving the concerned land owners or tenants. (3a.2) After the formulation of the Local Plan pursuant to Sub-section (3a.1), the Amended by the Act Amending Some Nepal Acts, 2072 (2015). Local Level shall have such plan approved by the Committee, where a Committee is formed; by the Town Development District Coordination Committee, where a Committee is not formed; and by the Town Development Central Coordination Committee, where such a committee is also not formed. (3a.3) After the Local Plan is approved pursuant to Sub-section (3a.2), the Amended by the Act Amending Some Nepal Acts, 2072 (2015). Local Level shall publish a notice including detailed particulars of such plan in two major newspapers published in Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 (2009). Nepal for the information of the general public. Added by the Third Amendment.3b. Operation of Local Plan: The procedure to be adopted by the Amended by the Act Amending Some Nepal Acts, 2072 (2015). Local Level while operating the Local Plan, and other arrangements, shall be as prescribed by the committee approving the plan pursuant to Sub-section (3a.2) of Section 3a. Amended by the Act Amending Some Nepal Acts, 2075 (2018).4.

Formation of Town Development Committee: (4.1) The Government of Nepal may, as necessary for the implementation of the Town Plan, form a Town Development Committee in each Local Level. (4.2) The Committee shall consist of the following members:- (4.2.1) Chief or Chairperson of the concerned Local Level - Chairperson (4.2.2) A member of the concerned District Coordination Committee designated by its Chief - Member (4.2.3) Chief District Officer or an officer of the District Administration Office designated by him/her - Member (4.2.4) Representatives of the offices related to forest, land, and survey located at the Local Level or District - Member (4.2.5) Three members designated by the concerned Municipal Executive or Rural Municipal Executive from among its members - Member (4.2.6) Two persons, including one woman,

nominated by the Executive of the concerned Local Level from among social workers of that area who have made significant contributions to local development - Member (4.2.7) Chief Administrative Officer of the concerned Local Level - Member-Secretary (4.3) If the Committee deems necessary, it may invite any person who has made significant contributions to the development of the concerned Local Level or any expert or advisor to participate as an observer in the meeting of the Committee. 5. Committee to be a Body Corporate: (5.1) The Committee formed pursuant to Sub-section (4.1) shall be an autonomous and corporate body with perpetual succession. (5.2) The Committee shall have its own separate seal. (5.3) The Committee may, like an individual, acquire, possess, sell, or otherwise dispose of movable and immovable property. (5.4) The Committee may, like an individual, sue and be sued in its own name. 6. Procedure Relating to Meetings of the Committee: (6.1) A meeting of the Committee shall be held at least once every two months. (6.2) If fifty percent of the total number of members of the Committee are present, the meeting shall be deemed to have the requisite quorum. (6.3) In a meeting of the Committee, the opinion of the majority shall prevail; and in case of a tie, the person chairing the meeting may cast a casting vote. Amended by the Third Amendment.(6.4) The meeting of the Committee shall be chaired by the Chairperson of the Committee.

If the Chairperson is not appointed or is absent, the members of the Committee shall elect one from among themselves to chair the meeting. (6.5) The meeting of the Committee shall be convened by the Member-Secretary on the date, time, and place fixed by the Chairperson. (6.6) The decisions made by the Committee meeting shall be certified by the person chairing the meeting and kept updated by the Member-Secretary. (6.7) Other procedures relating to the meetings of the Committee shall be determined by the Committee itself. Amended by the Third Amendment.7. May Form Sub-Committees: 7.1 The Committee may form sub-committees as necessary for the smooth conduct of its work and proceedings. 7.2 The functions, duties, and powers of a sub-committee formed pursuant to Sub-section (7.1), and other procedures, shall be as prescribed by the Committee. 8. May Impose Freeze: 8.1 Added by the Second Amendment.For the purpose of work related to the formulation of a Town Plan, the Committee may, by publishing a clear public notice from time to time, impose a freeze for a period not exceeding two years, as specified in such notice, prohibiting the subdivision of or any kind of physical alteration to any immovable property within the Town Plan area without the prior approval of the Committee. 8.2 The Committee shall send the notice of the freeze imposed pursuant to Sub-section (8.1) to the concerned office responsible for registration. 8.3 Upon receiving the notice pursuant to Sub-section (8.2), the concerned registration office shall not register any subdivision of such immovable property. 9. May Regulate, Control or Prohibit: 9.1 The Committee may, from time to time, by publishing a clear public notice, regulate, control, or prohibit as necessary the following matters within the Town Plan area, and no person shall do or cause to be done such regulated, controlled, or prohibited matters without the prior approval of the Committee:- 9.1.1 Use and consumption of agriculture, natural heritage, vegetation, forests, wildlife, archaeological, religious, historical sites, and inhabited and barren lands and immovable property; 9.1.2 New construction of any type of building, office, or other structures, or expansion of such existing structures; 9.1.3 Making or establishing any type of settlement, habitation, or housing, and establishing or making recreational, market, fair, industrial sites, etc.; 9.1.4 Doing any work that adversely affects natural beauty, tourist sites, and the health of the general public, or in any way pollutes the environment; 9.1.5 Using roads, bridges, and means of transportation used thereon, tree planting, water, electricity, etc.

9.2 For the purposes of Sub-section (9.1), while granting approval, the Committee may grant or refuse approval partially or fully, and may also prescribe necessary Amended by the Third Amendment. directions, conditions, or standards. 9.3 For taking inventory or surveying any immovable property within the Town Plan area, the Committee or a person deputed by the Committee shall have full authority to enter any house or

land or to question the concerned person. 10. Stop or Demolish:

10.1 If any person does any matter regulated, controlled, or prohibited by the Committee under Section 9 without prior approval of the Committee, or does so contrary to any condition or standard Amended by the Third Amendment. prescribed while granting approval, the Committee may order such work to be stopped immediately, and if any construction has been made in connection with such work, the Committee may, giving a notice period of thirty-five days, order the concerned person to demolish or remove Amended by the Second Amendment. the part constructed without the approval of the Committee or contrary to the conditions or standards. 10.2 A person not satisfied with the order given by the Committee to demolish or remove any part of a construction pursuant to Sub-section (10.1) may file a complaint to the Appeal Committee pursuant to Section 20 within thirty-five days from the date of receipt of such order. The Appeal Committee shall decide on such complaint within thirty days from the date of filing, and such decision shall be final. 10.3 If a complaint is filed pursuant to Sub-section (10.2) and the Appeal Committee decides to demolish or remove such part of the construction, the concerned person shall demolish or remove such part within thirty-five days from the date of such decision; and if no complaint is filed, the concerned person shall demolish or remove such part within thirty-five days from the date of the order given by the Committee pursuant to Sub-section (10.1). 10.4 If the concerned person fails to demolish or remove such part of the construction within the time limit specified in Sub-section (10.3), the Committee may itself demolish or remove it, and the expenses incurred in such demolition or removal shall be recovered Amended by the Second Amendment. from the concerned person as a government due. Added by the Second Amendment.10.5 When the Committee itself demolishes or removes any part of a construction pursuant to Sub-section (10.4), such demolition or removal shall be carried out in the presence of the ward member of the concerned ward of the Amended by the Act Amending Some Nepal Acts, 2072 (2015). Rural Municipality or Municipality.

If, despite best efforts during such demolition or removal, a larger portion than the one to be demolished or removed is demolished, the Committee shall not be held liable, and the concerned person shall not be entitled to claim compensation for damage caused by the demolition of such extra portion. Added by the Third Amendment.10.6 If the Committee has ordered the demolition or removal of any part of a construction pursuant to Sub-section (10.1), until such part of the construction is demolished or removed, the Committee shall send a letter to the concerned authority to attach such property so that it cannot be transferred or mortgaged to anyone for any reason, and the concerned authority shall act accordingly upon receipt of such letter. 11. Functions, Duties and Powers of the Committee: 11.1 In addition to the functions, duties, and powers specified elsewhere in this Act, the functions, duties, and powers of the Committee shall be as follows:- 11.1.1 To divide the Town Plan area into various land use zones, Amended by the Third Amendment.11.1.2 To prescribe necessary conditions or standards for physical development in the land use zone, Added by the Third Amendment.11.1.2a To classify land based on land use zones, Added by the Third Amendment.11.1.2b To guide the Organization or Amended by the Act Amending Some Nepal Acts, 2072 (2015). Local Level for the physical development of land by prescribing certain conditions or standards, 11.1.3 Subject to the prevailing Nepal law relating to ancient monuments, to prepare and implement necessary projects for the proper development and preservation of any religious, cultural, and historical heritage within the Town Plan area, 11.1.4 For the conservation of natural and environmental aspects of the Town Plan area, to prescribe conditions regarding construction and other activities in forests, streams, riverbanks, and water bodies and to act or cause to act accordingly, 11.1.5 To prohibit the use of natural heritage in a manner that causes adverse effects, 11.1.6 To prepare and implement land development and building construction projects in the land use zone as specified by the Town Plan, 11.1.7 To carry out other functions as per directives given from time to time by the Government of Nepal in accordance with the Town

Plan. 11.2 It shall be the duty of the Committee to coordinate with the concerned bodies of the Government of Nepal while performing the functions under this Act. 12.

May Operate Land Development Program: 12.1 In the course of planned town development, to fulfill the basic housing needs of persons of various income groups, to arrange housing plots, and for other urban activities, the Committee may, subject to the policies and directives of the Government of Nepal, operate land development programs as follows:- 12.1.1 To formulate a service facility related project in any part of the Town Plan area by mobilizing the participation of at least seventy-five percent of local landowners and tenants, and to operate a Guided Land Development Program by having the concerned body of the Government of Nepal, any corporate body, Amended by the First Amendment. the Municipality, or the local people invest in the work according to such project, 12.1.2 If there is consent of at least Amended by the Act Amending Some Nepal Acts, 2064 (2007). fifty-one percent of the landowners or tenants in any part of the Town Plan area, to consolidate various plots of land located in that area, to make arrangements for services and facilities in such land in accordance with the Town Plan, to recover the expenses incurred in making such service arrangements by selling developed plots, and to operate a Land Pooling Program by making arrangements to return the remaining developed plots to the original landowners or tenants on a proportional basis, Added by the Third Amendment.12.1.2a If the Committee wishes to operate a Land Pooling Program in any part of the Town Plan area pursuant to Sub-section (12.1.2), or if at least Amended by the Act Amending Some Nepal Acts, 2064 (2007). fifty-one percent of the landowners or tenants of that place apply for the operation of a Land Pooling Program by delineating the four boundaries in an area where no land development program has been operated under this Section, the Committee may operate a Land Pooling Program in a place where at least fifty families reside. Added by the Third Amendment.12.1.2b If a Land Pooling Program is to be operated pursuant to Sub-section (12.1.2a), the Committee shall form a Consumer Committee from among the consumers to mobilize the participation of local landowners or tenants, and shall operate the Land Pooling Program with the assistance of the Consumer Committee. Added by the Third Amendment.12.1.2c While operating a Land Pooling Program pursuant to Sub-section (12.1.2b), the Committee shall, following the procedure under Section 8, impose a freeze for a maximum of two years prohibiting the subdivision or physical alteration of immovable property located in that area.

Added by the Third Amendment.12.1.2d While operating the Land Pooling Program, the Committee shall, after consulting the Consumer Committee, determine whose land and how much area of land of which landowner or tenant should be set aside to provide services and facilities including roads, drainage, open spaces, drinking water, electricity, and others in that area, based on the prevailing price of the land in that area, original roads, and other facilities. Added by the Third Amendment.12.1.2e After the land has been set aside pursuant to Sub-section (12.1.2d), for the purpose of returning the developed plots to the original landowners or tenants pursuant to Sub-section (12.1.2), the Committee shall convert all plots of land falling within that area into a single plot, and subject to Sub-section (12.1.2g), shall send a letter to the concerned registration office to impose a freeze for a maximum of one year prohibiting the transfer of any right over any immovable property in that area for any reason, and upon receipt of such information, the concerned office shall not register any transfer of right over any immovable property in that area for any reason. Added by the Third Amendment.12.1.2f After the freeze on transfer of rights has been imposed pursuant to Sub-section (12.1.2e), the Committee shall, within the time limit mentioned in that same sub-section, return the developed plots to the original landowners or tenants along with a provisional certificate pursuant to Sub-section (12.1.2). Added by the Third Amendment.12.1.2g After returning the developed plots along with a provisional certificate to the concerned landowners or tenants pursuant to Sub-section (12.1.2f), the Committee shall send a letter to the concerned survey branch and Land Revenue or Land Revenue Office to reconcile the

map according to such certificate, to prepare landowner registration records accordingly, and to prepare and distribute landowner registration certificates; and the concerned survey branch and Land Revenue or Land Revenue Office shall also reconcile the map, prepare landowner records, and prepare and distribute landowner registration certificates to the concerned landowners or tenants accordingly. Added by the Third Amendment.12.1.2j Notwithstanding anything contained in the prevailing law, after the map is reconciled and new landowner registration records and landowner certificates are prepared pursuant to Sub-section (12.1.2g), the original map of the area where the Land Pooling Program was operated and all the original records and registers of the landowners or tenants in that area shall automatically stand void.

12.1.3 To operate a Sites and Services Program by having land in any part of the Town Plan area acquired from the Government of Nepal pursuant to Section 16, and by the Committee itself or through any corporate body, making arrangements for services and facilities on such land, preparing plots, and selling and distributing them,

Added by the Third Amendment.12.1.3a While selling and distributing plots pursuant to Sub-section (12.1.3), the Committee shall give priority to the original landowners and tenants who do not have plots or land in that Town Plan area. Plots sold and distributed in this manner shall not be subdivided without prior approval of the Committee. 12.1.4 If, for the operation of a land development program pursuant to the above sub-sections, the consolidated or acquired land of any landowner is less than the minimum unit plot area determined according to the land development program, such landowner shall be provided one plot of the minimum unit upon payment of the expenses incurred. Added by the Third Amendment.12.1.5 If any landowner having land less than the minimum unit area pursuant to Sub-section (12.1.4) is unable to take a plot by paying the expenses determined by the Committee, the Committee shall itself take such land of the landowner or tenant and provide compensation to him/her amounting to the prevailing price of such land. Added by the Second Amendment.12.2 In the course of implementing a Guided Land Development program, if a road construction requires a piece of land at the entrance of such land belonging to a person, and such person does not agree to give up the land and there is no other way to open the road, such land shall be acquired pursuant to Section 16. Of the compensation amount payable for acquiring land in such manner, fifty percent shall be borne by the Committee and the remaining fifty percent shall be borne by the persons benefitted by the implementation of the land development program. Added by the Second Amendment.12.3 To operate a Guided Land Development program, the Committee may form a Consumer Committee to mobilize the participation of local landowners and tenants, and it shall be the duty of such Consumer Committee to assist in the operation of the Committee's program. Added by the Second Amendment.12.4 If landowners and tenants submit an application to the Committee requesting the implementation of a Guided Land Development program by delineating its four boundaries in a place where the Committee has not implemented such a program, the Committee may implement a Guided Land Development program if it appears that at least fifty families can reside.

While implementing a Guided Land Development program in this manner, if any land needs to be acquired, the entire compensation amount for the land so acquired shall be borne by the local people benefitted by the implementation of such program. Amended by the Third Amendment.12a. Approval and Operation of Physical Development Related Plan:

12a.1 If any Organization wishes to operate a physical development related plan in an area where a Town Plan is in effect, it shall formulate such plan and get it approved by the Committee. 12a.2 After getting the plan approved by the Committee pursuant to Sub-section (12a.1), the concerned Organization shall operate the physical development related plan according to the conditions or standards prescribed by the Committee.

Added by the Third Amendment.12b. May Provide Assistance and Exemptions to Organizations:

12b.1 The Committee may recommend to the concerned body to provide any of the following facilities to an Organization operating a physical development related plan:-

12b.1.1 To provide technical assistance for operating the physical development related plan,

12b.1.2 To recommend providing loans to such Organization from finance companies, financial institutions, or banks at concessional rates as in the case of a priority sector for purchasing land required by it,

12b.1.3 To provide land required by such Organization according to the prevailing law. 12b.2 If any Organization is required to purchase land in connection with the formulation and operation of a physical development related plan, the Government of Nepal may, upon the recommendation of the Committee, grant a fifty percent exemption in the registration fee payable on the purchase of such land. Provided that, if the physical development related plan operated by such Organization cannot be implemented for any reason, such Organization shall pay to the Government of Nepal the amount equivalent to the registration fee exempted by the Government of Nepal along with interest on such amount as per the prevailing law. 12b.3 If any Organization is to be exempted from the ceiling limit to purchase more land for the operation of a physical development related plan, the Government of Nepal may, upon the recommendation of the Committee and subject to the conditions and agreement prescribed by the concerned body granting the ceiling exemption, grant an exemption, by publishing a notice in the Nepal Gazette, from the application of the ceiling limit provision according to the prevailing law in respect of such land of such Organization. Provided that, if such plan is not implemented at all, or if the Committee decides that it has not been implemented according to the conditions or standards prescribed by the Committee, such Organization shall not be entitled to the facility relating to the land ceiling limit. Added by the Third Amendment.12c.

Local Level May Operate Land Development Program: 12c.1 The Amended by the Act Amending Some Nepal Acts, 2072 (2015). Local Level may, if it wishes, operate a land development program in any part of its area pursuant to Section 12. 12c.2 If the Amended by the Act Amending Some Nepal Acts, 2072 (2015). Local Level is to operate a land development program pursuant to Sub-section (12c.1), it shall obtain a recommendation from the Committee where a Committee is formed; from the Town Development District Coordination Committee where a Committee is not formed; and from the Town Development Central Coordination Committee where such a committee is also not formed, and have such program approved by the Ministry. 12c.3 While operating a land development program pursuant to Section 12, the Amended by the Act Amending Some Nepal Acts, 2072 (2015). Local Level shall have the same powers as the Committee under this Act, and the Amended by the Act Amending Some Nepal Acts, 2072 (2015). Local Level shall also follow the procedure and other arrangements to be adopted by the Committee under this Act while operating such land development program. 12c.4 The Ministry or the Committee may provide technical and financial facilities to the Amended by the Act Amending Some Nepal Acts, 2072 (2015). Local Level operating a land development program pursuant to Sub-section (12c.1). 13. Power to Mobilize Financial Resources: The Committee may, with the prior approval of the Government of Nepal, take loans, receive grants, or mobilize financial resources through any other means to meet the expenses required for the smooth conduct of its work. Added by the Third Amendment.13a. Approval Required for Granting Grant, Assistance, Loan: While giving grant, assistance, or loan of its movable and immovable property to any person or organization, the Committee shall obtain the prior approval of the Government of Nepal. 14. Fund of the Committee: 14.1 There shall be a separate fund of the Committee. The following amounts shall be deposited into that fund:- 14.1.1 Grants received from the Government of Nepal, 14.1.2 Amounts received from any international or

foreign organization through the Government of Nepal, 14.1.3 Amounts earned from the movable and immovable property of the Committee, 14.1.4 Any other amounts received by the Committee. 14.2 All amounts of the Committee shall be deposited in the Nepal Rastra Bank or any commercial bank in the name of the Committee. 14.3 All expenses to be incurred on behalf of the Committee shall be borne from the fund pursuant to Sub-section (14.1). 14.4 The operation of the account of the Committee shall be as prescribed. 15.

Accounts and Audit of the Committee: 15.1 The accounts of the Committee shall be maintained according to the prevailing format and method of the Government of Nepal. 15.2 The audit of the Committee shall be conducted by the Office of the Auditor General. 15.3 The Government of Nepal may, if it wishes, inspect or cause to be inspected the accounts, documents, and other cash and kind of the Committee at any time. 16.

Acquisition of Land: The Ministry may, according to the prevailing law, acquire land required for the implementation of the Town Plan and make it available to the Committee. 17. Formation and Functions,

Duties and Powers of Town Development Central Coordination Committee: 17.1 To bring coordination in the work and proceedings of Committees formed in various areas, markets, Amended by the First Amendment. rural areas, urban areas, and regional development centers of Nepal, Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 (2009). the Ministry may form one Town Development Central Coordination Committee by publishing a notice in the Nepal Gazette. 17.2 Fifty percent of the total number of members in the Committee shall be public representatives and social workers. 17.3 The members of the Committee formed pursuant to Sub-section (17.1) and their term of office shall be as prescribed in the notice issued pursuant to that same sub-section. 17.4 If the Ministry deems necessary, it may, by publishing a notice in the Nepal Gazette, subject to Sub-section (17.2), make necessary additions, deletions, or changes to the members of the Committee formed pursuant to Sub-section (17.1). 17.5 The functions, duties, and powers of the Committee formed pursuant to Sub-section (17.1) shall be as prescribed. Added by the Third Amendment.

17a. Formation of Town Development District Coordination Committee: 17a.1 To bring coordination at the district level in the work and proceedings of Committees formed in various areas, markets, rural areas, and urban areas of Nepal, Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 (2009). the Ministry may form a Town Development District Coordination Committee by publishing a notice in the Nepal Gazette. 17a.2 Fifty percent of the total number of members in the Committee formed pursuant to Sub-section (17a.1) shall be public representatives and social workers. 17a.3 The term of office of the Chairperson and members of the Committee formed pursuant to Sub-section (17a.1) shall be as prescribed in the notice issued pursuant to that same sub-section.

17a.4 If the Ministry deems necessary, it may, by publishing a notice in the Nepal Gazette, subject to Sub-section (17a.2), make necessary changes to the members of the Committee formed pursuant to Sub-section (17a.1). 17a.5 The functions, duties, and powers of the Committee formed pursuant to Sub-section (17a.1) shall be as prescribed. 18. Penalty: 18.1 If any person does any matter regulated, controlled, or prohibited by the Committee under Section 9 without prior approval of the Committee, or does so contrary to any condition or standard Amended by the Third Amendment. prescribed while granting approval, the Committee may, considering the gravity of the offense and the status of the accused, impose a penalty of a fine up to Amended by the Second Amendment. one hundred thousand rupees or imprisonment up to one year or both. 18.2 If any person obstructs or opposes any work or proceeding done or being done by the Committee under this Act or the Rules made under this Act, the Committee may impose a penalty on such person of Amended by the Second Amendment. a fine up to twenty-five thousand rupees or imprisonment up to six months or both. 18.3 If any person does any act contrary to the order or direction given by the Committee under this Act or the Rules made under this Act, the Committee may impose a fine

on such person up to five thousand rupees. 18.4 If any person does any act contrary to this Act or the Rules made under this Act other than those mentioned above, the Committee may impose a fine on such person up to five thousand rupees. Added by the Second Amendment.18.5 When the Committee imposes a penalty of imprisonment pursuant to Sub-section (18.1) or (18.2), it shall be implemented only after being confirmed by the Appeal Committee under Section 20 upon submission of a reference. 19. Appeal: A person not satisfied with the order of penalty given by the Committee under Section 18 may appeal to the Appeal Committee under Section 20 within thirty-five days from the date of receipt of such penalty order. 20. Appeal Committee: Amended by the Act Amending Some Nepal Acts, 2072 (2015).20.1 The Government of Nepal may, as necessary, form Appeal Committees to hear appeals against orders given by the Committee under Section 10 or 18.